BRENDAN NGEHSI NEWANFORBI
Petitioner, In Pro Per
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive, Respondents.	Case No. 26CV191136 **DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR ISSUANCE OF PEREMPTORY WRIT OF MANDATE** Date: January 8, 2027 Time: 9:00 a.m. Dept.: 25 Judge: Hon. Jenna M. Whitman

I, Brendan Ngehsi Newanforbi, declare:

1. I am the Petitioner in this action. I have personal knowledge of the facts stated in this declaration, except where I identify a document as the source, and if called as a witness I could testify competently to them.

2. Exhibits 1, 2, 3, 5, 6 and 7 to the Verified Petition are true copies of, respectively, the April 20, 2026 letter I received from Captain G. Serrato; my April 9, 2026 certification request; my supporting memorandum and transmittal email; the transcript I prepared of the CHP recording of November 1, 2024; the CHP arrest-investigation report I obtained; and the certificate CHP gave me on November 5, 2024. [CONFIRM EXHIBIT NUMBERS AGAINST THE FILED PETITION.]

3. I prepared the transcript (Pet. Ex. 5) by listening to the CHP recording and writing

down the words spoken, with the time displayed on the recording. The words in quotation marks are, to the best of my ability, the words spoken. Text in brackets is my own description of what the video shows, not words spoken. The recording itself was lodged with the Court on September 8, 2026. [CONFIRM THE LODGING WAS ACCEPTED.]

4. Exhibit A to this declaration is a true copy of documents bearing Bates numbers AGO 000029 through AGO 000053, as I received them from CHP's counsel on October 23, 2026, in response to my Request for Production of Documents, Set One.

5. Exhibit B is a true copy of CHP's written response to Request for Production No. 8, which asked for CHP's April 2026 Form I-918 Supplement B certification file, as I received it on [DATE]. [ATTACH ONLY IF RECEIVED.]

6. Exhibit C is a true copy of the privilege log CHP's counsel served on October 23, 2026. [ATTACH ONLY IF RECEIVED.]

7. In the early morning of November 1, 2024, I pulled onto the right shoulder of eastbound Interstate 580 in Livermore because I was tired, and I fell asleep in the driver's seat of the rental Tesla I was driving.

8. When Officer Meza-Gonzalez described the walk-and-turn test, I told him I thought I could do it. Officer Melano then said he would not do that test there because of the uneven ground, and the test was not given. I did not tell either officer that I would not do the walk-and-turn test, or that it was difficult. [CONFIRM AGAINST YOUR OWN MEMORY AND THE NATIVE VIDEO BEFORE SIGNING.]

9. Officer Meza-Gonzalez told me that the preliminary alcohol screening test was not required. I declined it. Immediately afterward he told me to turn around and put my hands behind my back, and he handcuffed me.

10. After my blood was drawn, I was taken to Santa Rita Jail, where I was held until November 5, 2024. No criminal charge has been filed against me arising from November 1, 2024.

11. Before April 9, 2026, I filed complaints about the officers' conduct with CHP and with the Commission on Peace Officer Standards and Training. No one from CHP, the

Commission, any prosecutor, or any other agency has ever asked me for information or assistance concerning the officers' conduct, and I have never refused any such request. I remain willing to answer questions, provide documents, and testify about it.

12. On April 9, 2026, I emailed my certification request and the materials listed in paragraph 2 to Sergeant Eric Dutra, with a copy to Captain Serrato. I received Lieutenant Gary Paul's April 10, 2026 email stating that the request was under review, and Captain Serrato's April 20, 2026 letter denying it.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on _____, 2026, at _____, California.

_____

BRENDAN NGEHSI NEWANFORBI